

ClearGlass Institute – Founding Kit

Status: DRAFT – Not a legal entity until Ontario issues certificate. Not a charity until CRA registers it.

Disclaimer: This kit is general information, not legal advice. Have an Ontario nonprofit lawyer review articles before filing, especially if any director is also a ClearGlass Inc. controller.

1. Lock the Structure

Entity: ClearGlass Institute (fallback: ClearGlass Public Interest Institute)

Jurisdiction: Ontario Not-for-Profit Corporations Act (ONCA) – Provincial

Registry: Ontario Business Registry <https://www.ontario.ca/page/ontario-business-registry>

Federal backup: CNCA Corporations Canada Form 4001 (~\$200) if you later need national name protection / extra-provincial simplicity – <https://ised-isde.canada.ca/site/corporations-canada/en/not-profit-corporations>

Typical 2026 ONCA path:

1. NUANS name search / OBR name reservation search
2. Minimum 3 directors (individuals, 18+, not bankrupt), majority Canadian? ONCA has no residency requirement since 2021, but keep 3 for credibility
3. Burlington registered office – street address, not PO box alone
4. Articles of Incorporation with purposes + no-gain + dissolution clauses
5. Online fee ~\$155, certificate often within ~5 business days [corporation-ontario](https://www.ontario.ca/page/corporation-ontario)

Critical distinction: A nonprofit corporation is NOT a registered charity. Only CRA charitable registration allows official donation receipts. CRA processing is often 6–18 months. Until then, you must state gifts are not tax-receiptable. [charitylawgroup](https://www.charitylawgroup.com)

2. Objects – PASTE-READY FOR ONCA ARTICLES (Improved – Public Education Only)

Paste **ONLY** this into the Purposes / Objects field. Membership, director min/max, and dissolution go in their own fields, not inside purposes. [lambalaw](#)

```
1 The purposes of the Corporation are:
1
1 1. To advance education of the public in Canada in the fields of cybe
1
1 2. To advance education by conducting and disseminating, for public b
1
1 3. To advance education by providing educational resources and traini
1
1 4. To advance education by collaborating with educational institution
1
1 The Corporation shall be carried on without the purpose of gain for i
```

Why this is better:

- Uses CRA-preferred "To advance education by..." structure with defined beneficiaries (public) and defined delivery (structured programs) - required for advancement of education
- Removes commercial-sounding work: no product sales, consulting retainers, or ClearGlass Inc. services [lexaltico](#)
- Keeps it as nonprofit objects, not "any lawful business" - changing purposes later requires special resolution + refiling [treadstonelaw](#)
- No private benefit language: "without purpose of private profit / public benefit"

OTHER ARTICLES FIELDS – Do not put inside Purposes:

Directors: Minimum 3, maximum 9

Members: One class of members. Membership is restricted to persons who are directors of the Corporation. Non-transferable.

Dissolution / Remaining Property (put in its own field):

Upon dissolution and after payment of all debts and liabilities, the remaining property of the Corporation shall be distributed or disposed of to one or more qualified donees as defined in subsection 149.1(1) of the Income Tax Act (Canada) with purposes similar to those of the Corporation, as selected by the directors.

[lambalaw](#)

3. Do This Now - 5 Steps

Step 1: Confirm Name

- OBR: Search "ClearGlass Institute" - if conflict, use "ClearGlass Public Interest Institute"
- Order NUANS report (federal + Ontario database) - 90-day reference
- Screenshot results for minute book

Step 2: Three Director Consents + Registered Office

You need signed consents BEFORE filing.

Director Consent Template:

1 DIRECTOR CONSENT - ClearGlass Institute (Proposed ONCA Corp)

1

1 I, [Full Legal Name], of [City, Ontario], consent to act as a first d

1

1 Address for service: [Street, Burlington, ON, L7R ____]

1 Email:

1 Signature: _____ Date: _____

- Collect 3 of these
- Registered Office: Provide Burlington street address + mailing address (can be same). Must be in Ontario, must be physical for service.

Step 3: File ONCA Articles

In OBR:

- Corporation name (from Step 1)
- Registered office address
- 3 directors + their consent dates
- Purposes: paste from Section 2 above
- Standard: Members: one class, non-transferable, no fee or small fee
- No share capital, not charitable yet - leave charitable tick NO

Save PDF of Articles and Certificate when issued.

Step 4: Same Week After Certificate (Organization)

- **Organizational Minutes / First Resolutions:**
 - Adopt Bylaw No. 1
 - Appoint officers (President, Secretary, Treasurer - can be same directors)
 - Adopt registered office, fiscal year-end (e.g., Dec 31), financial institution
 - Adopt related-party policy (see below)
 - Authorize CRA BN and bank account
- **Bylaw No. 1 (ONCA) - Minimal Skeleton:**
 - 1. Definitions
 - 2. Members: one class, conditions, termination
 -

3. Directors: min 3 max 9, 2-year terms, quorum majority, meetings by phone/video permitted

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4. Officers, duties, removal

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5. Conflict of interest and related-party transaction: disclosure, recusal, fair market value, minuted

-

6. Financial: fiscal year, banking, signing officers (2 to sign), no borrowing beyond limits without members

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7. Records and minute book at registered office

- **CRA Business Number:** Register via Business Registration Online (BRO) - <https://www.canada.ca/en/revenue-agency/services/tax/businesses/topics/registering-your-business/business-registration-online-overview.html>

Select "Not-for-profit organization" - you will get 9-digit BN + RC0001 for corporate, but NOT RR0001 (charity) yet.

- **Institute-Only Bank Account:**

Bring: Certificate, Articles, Bylaws, Organizational Minutes, 2 directors ID, BN, registered office lease/utility if asked.

Title must be "ClearGlass Institute" - no "ClearGlass Inc." co-mingling. No personal accounts.

- **Minute Book:** Physical or digital secure folder: Certificate, Articles, NUANS, Consents, Bylaws, Minutes, BN letter, bank docs, registers.

Step 5: Public Footer (Website / GitHub / Decks)

Must be on every public page starting Day 1:

ClearGlass Institute is an Ontario not-for-profit corporation incorporated under the Ontario Not-for-Profit Corporations Act. It is not a registered charity with the Canada Revenue Agency and cannot issue official donation receipts for income tax

purposes at this time. ClearGlass Institute is legally separate from ClearGlass Inc. No implied partnership, endorsement, ranking, or impact metrics are claimed unless a written agreement exists and is listed on this site.

No invented partners, logos, rankings, or impact numbers.

4. Related-Party Rule (ClearGlass Inc. Separation)

Any transaction or collaboration between Institute and ClearGlass Inc. requires:

1. Written disclosure of interest by any overlapping director/officer
2. Recusal from discussion and vote
3. Written fair-market terms, competitive rationale
4. Board minutes documenting (a)-(c)
5. No commingling of funds, staff time must be documented and reimbursed at cost if cross-used

The Institute's GitHub org / repos must be separate. If using ClearGlassInc org temporarily, create distinct repo with separate ownership. Your screenshot of Rulesets / New branch ruleset shows the right instinct: Protect your most important branches - enable `Restrict deletions` + `Block force pushes` + `Require pull request` for any Institute repo, but do it in an Institute-owned repo, not the Inc. repo.

5. 14-Day KPI - DONE only when all six exist

- ☐ 1. Ontario Certificate of Incorporation (PDF)
- ☐ 2. Three signed Director Consents (with addresses)
- ☐ 3. Bylaw No. 1 adopted and signed (minutes reference)
- ☐ 4. CRA Business Number letter (BN9)
- ☐ 5. Institute-only bank account (void cheque / bank letter)
- ☐ 6. Public footer "not a charity" disclaimer live on site / GitHub README

If any missing, you are not done.

6. Phase 2 - Charity (Do NOT start until Phase 1 KPI done)

Charitable registration requires objects and activities to be EXCLUSIVELY charitable in CRA's sense (relief of poverty, advancement of education, advancement of religion, other purposes beneficial to community as recognized).

You will need:

- 12 months of actual public-education activity consistent with purposes
- Financial statements
- No private benefit to ClearGlass Inc.
- T3010 readiness

Do not solicit as charity, do not issue receipts, do not use "charitable" language in fundraising until CRA issues RR0001.

7. Checklist for Filing Today

1. Choose final name, run OBR name search
2. Draft 3 consents - email directors today
3. Confirm Burlington street address for registered office
4. Copy purposes clause into OBR draft - send to nonprofit lawyer for 30-min review
5. Prepare \$155 + card
6. After filing, calendar: Day 5 - check certificate; Day 7 - organizational meeting + BRO + bank

Files to keep: NUANS, Articles, Certificate, Consents, Bylaws, Minutes, BN, Bank, Public screenshot.

